

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MICHAEL BENTO,

Plaintiff,

**SUMMONS WITH
VERIFIED COMPLAINT**

-against-

Index No.:

Dated Purchased:

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
BRYAN DEVITA, TAX # 950319,
INDIVIDUALLY AND AS A POLICE
OFFICER, SGT. JAMES SLAVIN, 17TH PCT.,
INDIVIDUALLY AND AS A POLICE OFFICER,

Plaintiff designates New York
County as the place of trial.
The basis of the venue is place
where the cause of action arose:

Defendants.
-----X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service, (30) days after the service is complete, if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 21 day of January, 2016


EMDIN & RUSSELL, LLP.
Jeffrey L. Emdin, Esq., as Counsel
Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018

(212) 683-3995

Defendants address:

City of New York
c/o Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

Police Officer DeVita
Sgt. Slavin
c/o 17th pct.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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Plaintiff,

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INDIVIDUALLY AND AS A POLICE OFFICER,

Defendants.

-----X

The plaintiff, Michael Bento, by her attorneys, Emdin & Russell, LLP
complaining of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", was, and still is a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.
2. Upon information and belief at all times hereinafter mentioned, the defendant, the City of New York, hereinafter certified to as "City", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department hereinafter referred to as "NYPD", including all the police officers and correction officers therein.
3. Upon information and belief, at all times hereinafter mentioned, and on the 17th day of August, 2015, Police Officer Bryan DeVita, hereinafter referred to as "DeVita" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 17th pct., and at

all relevant times set forth below acted in the capacity of a police officer. Upon information and belief his tax ID number is 950319

4. Upon information and belief at all times hereinafter mentioned and on the 17th day of August, 2015, "DVita", was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee.

5. Upon information and belief, at all times hereinafter mentioned, and on the 17th day of August, 2015, SGT. Slavin, hereinafter referred to as "Slavin" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 17th pct, and at all relevant times set forth below acted in the capacity of a police officer.

6. Upon information and belief at all times hereinafter mentioned and on the 17th day of August, 2015, "Slavin" was acting within the scope of her employment as a police officer and under the direction of the "City" as their agent, servant and/or employee.

7. Upon information and belief, at all times hereinafter mentioned, and on the 17th day of August, 2015, "Slavin" was the supervisor and in charge of defendant DeVita.

8. Upon information and belief, on August 17, 2015 DeVita and/or Slavin, individually and/or collectively, were acting under and required to follow the New York City Police Patrol Guidelines, Police Legal Memorandum, Police Interim Orders, and Police Administrative Orders.

9. On the 17th day of August, 2015, plaintiff Michael Bento, hereinafter referred to as "Bento" was a resident of the State of New York, County of New York.

10. That on August 17, 2015, at approximately 8:30 p.m. the plaintiff, Bento, was lawfully participating in a protest in the area of 230 east 50th Street, New York,, NY, hereinafter

referred to as “the location”.

11. At that time and place defendant Slavin, upon information and belief, violently grabbed a female protestor, forcefully bringing her down to the ground.

12. Numerous members of the protest group, including the plaintiff, yelled “Shame” and “who do you work for” in protest.

13. Once the female was handcuffed, Slavin aggressively approached the plaintiff who was yelling “shame” and “Who do you work for”.

14. As the plaintiff was backing up, Slavin reached unsuccessfully to grab the plaintiff and then grabbed the plaintiff in a headlock and took the plaintiff down to the ground in a choke hold on the street sidewalk.

15. Slavin placed a knee on the plaintiff’s body. The crowd yelled that he was choking the plaintiff, and he handcuffed and arrested the plaintiff.

16. The plaintiff was transported to the 17th pct. in handcuffs.

17. The plaintiff was placed in a holding cell and held in excess of two hours.

18. The plaintiff was issued a summons by defendant DeVita falsely accusing him of disorderly conduct by obstructing vehicular traffic. Upon information and belief the Summons was approved by Slavin.

19. The plaintiff was required by the Summons to attend court on October 8, 2015.

20. Upon information and belief the plaintiff appeared in court on October 8, 2015 and on November 4, 2015, the later of which resulted in all charges being dismissed on summons # 4418917986.

21. That notices of the plaintiff’s claim and notice of intention to sue for damages, the

nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were duly served upon the comptroller of the defendant "City".

22. That a 50(h) hearings was held on December 7, 2015.

23. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

24. That this action is commenced within one year and 90 days after the cause of action arose.

25. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR FALSE IMPRISONMENT

26. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "25" with the same force and effect as if more fully and at length set forth herein.

27. That beginning on or about the 17th day of August, 2015, at or about approximately 8:30 p.m. at or near the "location" until the plaintiff's release from custody at the 17th pct. at approximately 10:30 p.m. the same day, the defendants, their agents, servants and/or employees detained and imprisoned plaintiff without any just cause or grounds.

28. That said imprisonment was caused by the defendants, their agents, servants,

and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff was guilty of any crimes.

29. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

30. That the defendants, their agents servants and/or employees, as set forth above, intended to confine the plaintiff; the plaintiff was conscious of the confinement; he did not consent to the confinement; and the confinement was not otherwise privileged

31. That by reason of the aforesaid false imprisonment and detention, plaintiff was subjected to great indignity, humiliation, loss of work and loss of freedom and the said plaintiff has been otherwise damaged.

32. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR FALSE ARREST

33. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "32" with the same force and effect as if more fully and at length set forth herein.

34. That beginning on or about the 17th day of August, 2015, at or about

approximately 8:30 p.m. at the "location", the plaintiff was handcuffed and placed under arrest by the defendants, their agents, servants and/or employees without any just cause or grounds, and held against his will under full force of arms..

35. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds to believe that the plaintiff committed, or was about to commit a crime or was guilty of any crimes.

36. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to her arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

37. That the defendants, their agents, servants and/or employees, as set forth above, intended to seize, search, and arrest the plaintiff; that the plaintiff was conscious of the arrest and confinement; the Plaintiff did not consent to the arrest and confinement; and the arrest was not otherwise privileged.

38. That by reason of the aforesaid false arrest, plaintiff was subjected to great indignity, humiliation, stress and loss of freedom and the said plaintiff has been otherwise damaged.

39. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
FOR ASSAULT AND BATTERY

40. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "39" with the same force and affect as if more fully and at length set forth herein.

41. The plaintiff was grabbed, choked, thrown to the ground, kneed, and handcuffed, by the defendant, "City", and the "NYPD" its agents/servants, and/or employees, including the defendants Slavin and/or Devita.

42. That all said contact was committed without the plaintiff's permission or consent.

43. That all said contact was unlawful and without privilege.

44. That said use of force was excessive under the circumstances.

45. That all contact committed by defendants through their agents, servants, and/or employees, including the named defendant police officers, was offensive to plaintiff and caused him to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or psychological injury and/or discomfort.

46. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff.

47. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF
FOR NEGLIGENCE

48. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "47" with the same force and affect as if more fully and at length set forth herein.

49. That the defendant, "City" was careless and reckless in hiring, retaining, training, supervising and promoting as and for its employee, defendant Slavin, in that said employee lacked the experience, deportment and ability to be employed by the defendants in the capacity in which he was utilized, i.e. as a police officer and supervisor of other police officers; in that the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices; in that the defendant "City" failed to investigate the above named employee's backgrounds; in that the City failed to properly train, supervise and monitor the 'officers; and in that that the defendant City was negligent in disciplining, training, retraining, retaining, promoting and monitoring Slavin, and in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.

50. That the aforesaid occurrence, to wit: the assault and battery, false arrest and imprisonment, violation of right to assemble and/or associate and to freedom of speech and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, its agents, servants and/or employees including defendant Slavin without any negligence on the part of the plaintiff contributing thereto.

51. That by reason of the aforesaid, the plaintiff was injured, imprisoned, lost his freedom, was maliciously prosecuted and he was thereby damaged.

52. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A FIFTH CAUSE OF ACTION:
FOR VIOLATION
OF PERSONAL CONSTITUTIONAL RIGHTS UNDER
42 U.S.C. 1983 AGAINST SEVERIN AND DEVITA

53. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "52" with the same force and effect as if more fully and at length set forth herein.

54. That on or about the 17th day of August, 2015 at or about approximately 8:30 p.m. at the "location", Slavin and upon information and belief Devita, were present thereat as part of their regular and official employment as police officers for the defendant, "City".

55. Plaintiff was lawfully and properly at the "location", exercising his right to assemble, right to associate, and to freedom of speech, when "Slavin" and/or "DeVita", individually and/or collectively, acting as agents, servants and/or employees of the defendant "City", forcibly seized and assaulted and battered the plaintiff absent just cause, provocation or reason. The plaintiff had not engaged in any criminal conduct or suspicious activity.

56. Slavin, in response to the plaintiff exercising his freedom of speech, right to protest, and/or right to assemble, assaulted, battered and handcuffed and falsely arrested the plaintiff.

57. The “officers”, Slavin and/or DeVita, individually and/or collectively filed or conspired to file, false statements, paperwork, and gave, and/or conspired to give, false information regarding the circumstances of the plaintiff’s arrest.

58. Slavin and/or Devita failed to intervene, mitigate, stop or report the illegal conduct complained of herein, and instead participated and were complicit in the conduct.

59. That all acts committed by Slavin and/or DeVita and other agents servants, employees and/or agents of the defendant “City” were committed within the scope of their employment and under color of law.

60. That said acts constituted a violation of the plaintiff’s right to freedom of speech, right to assemble and associate, and an illegal seizure of the plaintiff and deprived plaintiff of his rights and liberties as set forth in the Constitutions of the United States, i.e. the First, Fourth and Fourteenth Amendments, and of the Constitution of the State of New York and under 42 U.S.C. Section 1983.

61. That the unlawful and illegal conduct of defendants “officers” deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

- a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- b) The right to freedom of speech and expression.
- c) The right to Due Process Law.
- d) The right to equal protection under the law.

e) The right to assemble

f) The right to be free from cruel and/or unusual punishment and/or excessive force

62. That by reason of the aforesaid violations, use of force, seizure of plaintiff's person, his false arrest and false imprisonment, assault and battery, making false statements, and malicious prosecution the defendant, the Police Officers, Slavin and/or Devita, violated plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and violated 42 U.S.C. §1983.

63. That as a direct proximate result of Slavin and DeVita's actions plaintiff was subjected to great to pain, injury, indignities and humiliation, loss of freedom, imprisonment, malicious prosecution and pain and distress of mind and body.

64. That by reason of the aforesaid, the plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF
FOR MALICIOUS PROSECUTION

65. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "64" with the same force and affect as if more fully and at length set forth herein.

66. That the "officers" as agents, servants and/or employees of the City of New York,

maliciously prosecuted the plaintiff for crimes that they knew he did not commit, and/or that was based upon an illegal search and seizure.

67. That as a result of said malicious prosecution the plaintiff was caused to attend two court appearances until all charges were dismissed on November 4, 2015.

68. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

WHEREFORE, the plaintiffs demand judgment against the defendants in a sum to be determined by the trier of fact on the First through Sixth causes of Action, plus costs, attorney's fees, punitive damages (on the Fifth cause of action), and/or declaratory and such other and further relief as to the Court seems just and proper on the First through the Sixth causes of action.

DATED: New York, New York
January 26, 2016



Jeffrey L. Emdin, Esq.,
Emdin & Russell, LLP.
Attorneys for the plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

CLIENT VERIFICATION

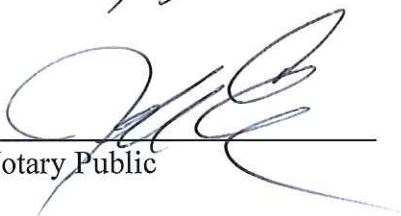
STATE OF NEW YORK]
] ss.:
COUNTY OF NEW YORK]

I, Michael Bento, being duly sworn depose and say: I am the plaintiff in the within the action, I have read the foregoing Summons and Verified Complaint, and know the contents hereof; the same is true to my own knowledge based upon my own knowledge and belief.



Michael Bento, **Plaintiff**

Sworn to before me this
19 day of May, 2016



Notary Public

JEFFERY L. EMDIN
Notary Public, State of New York
No. 02EM5068790
Qualified in Westchester County
Commission Expires November 12, 2018 

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

MICHAEL BENTO,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER BRYAN DEVITA, TAX # 950319, INDIVIDUALLY AND AS A POLICE
OFFICER, SGT. JAMES SLAVIN, INDIVIDUALLY AND AS A POLICE OFFICER,

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL, LLP

Attorneys for Plaintiff

499 Seventh Avenue, Floor 12N

New York, New York 10018

(212) 683-3995

To: Corporation Counsel

City of New York

100 Church Street

New York, New York 10007

Police Officer DeVita

Tax ID # 950319

c/o 17th pct.

167 E 51st St

New York, NY 10022

Sgt. James Slavin

c/o 17th pct.

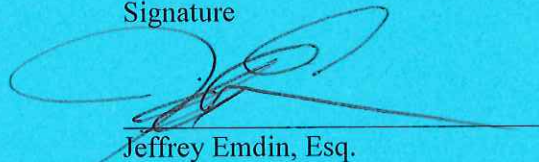
167 E 51st St.

New York, NY 10022

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: January 21, 2016

Signature



Jeffrey Emdin, Esq.

PLEASE TAKE NOTICE

- [] NOTICE OF ENTRY
that the within is a (certified) true copy of a _____ duly entered in the office of the
clerk of the within named court on _____
- [] NOTICE OF SETTLEMENT
that a _____ of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on _____